

Madanmohan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 May 2022 · WRIT - C No. 9355 of 2022 · **Writ disposed with liberty to file a Para 6.5 objection; coercive action stayed.**

HEADNOTE

Writ challenging a recovery certificate for Rs. 9,24,646 plus interest disposed of without any opinion on merits, with liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 4 within four weeks, to be decided expeditiously, preferably within four weeks, after hearing. Coercive action on the demand stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Madanmohan petitioned the Allahabad High Court against the State of U.P. and the power distribution corporation to quash a recovery certificate dated 25 November 2021, issued by respondent no. 3, demanding Rs. 9,24,646 plus interest. He also sought a correct electricity bill or statement of account from respondent no. 4 and a bar on coercive recovery. On instructions, counsel for the corporation stated that the petitioner could file an objection against the demand, to be decided in accordance with law within a fixed period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Objection to a disputed recovery demand as the remedy in place of the writ

HOLDING

Without expressing any opinion on the merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 4 within four weeks, with a certified copy of the order. If submitted in time, respondent no. 4 shall decide it in accordance with law, expeditiously, preferably within the next four weeks, after a reasonable hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery certificate was disposed of without a merits finding, leaving the petitioner to an objection under Para 6.5 before respondent no. 4. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed demand of Rs. 9,24,646 plus interest, and the request for a correct bill, were left to a time-bound Para 6.5 objection, with coercive action stayed only until that objection is filed and decided or eight weeks pass. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE DATED 25.11.2021 FOR RS. 9,24,646 PLUS INTEREST, AND THE ELECTRICITY BILL, WERE CORRECT.

The Court expressed no opinion on the merits and left the objection to be decided by respondent no. 4 under Para 6.5.

¶ 1